WHITE LABEL SOFTWARE DISTRIBUTION AGREEMENT
for the Distribution of the NEXTREPORTING Platform

Version 1.0

THIS WHITE LABEL SOFTWARE DISTRIBUTION AGREEMENT is entered into between:

XXX, a company duly incorporated under the laws of [...], having its registered office at [...] ("**ATEBIZ**" or "**Provider**"); and **YYY**, a company duly incorporated under the laws of [...], having its registered office at [...] ("**Distributor**").

The Provider and the Distributor are hereinafter jointly referred to as the "**Parties**" and individually as a "**Party**".

1. PURPOSE

The Provider has developed and owns the proprietary Software as a Service platform marketed as **NEXTREPORTING**, consisting of a cloud-based financial reporting, analytics and business intelligence solution designed to generate dashboards and financial insights from compatible enterprise systems.

The Distributor has developed and commercialises the SaaS platform **KONSOLIDATOR**, which is intended to operate as the primary financial management platform used by its customers.

The Parties acknowledge that NEXTREPORTING operates as an analytics and reporting layer built upon data made available by KONSOLIDATOR through authorised interoperability mechanisms. Accordingly, the Provider does not warrant the accuracy, completeness or continued availability of information originating from KONSOLIDATOR or any systems controlled by the Distributor.

The Distributor remains solely responsible for ensuring the proper operation, maintenance, configuration and availability of KONSOLIDATOR and its APIs, as well as the integrity of the data supplied to NEXTREPORTING.

The Parties wish to establish a long-term commercial relationship under which the Distributor shall market and distribute NEXTREPORTING under a white-label model as an integrated component of the KONSOLIDATOR ecosystem.

Accordingly, the Provider appoints the Distributor as an authorised White Label Distributor of NEXTREPORTING under the terms and conditions set out in this Agreement.

Nothing contained herein shall create a partnership, agency, franchise or joint venture between the Parties.

2. APPOINTMENT

Subject to the terms of this Agreement, the Provider grants the Distributor a non-transferable, non-exclusive licence to market, promote, sublicense access to and distribute NEXTREPORTING under the Distributor's own commercial branding within the Territory.

The Distributor shall act as an independent distributor and shall contract with End Customers in its own name and for its own account.

The Distributor shall not represent itself as the owner, developer or copyright holder of NEXTREPORTING.

The Provider reserves the right to appoint additional distributors both within and outside the Territory unless exclusivity has been expressly agreed in writing.

3. TERRITORY

The initial Territory shall comprise **Denmark**.

The Parties may agree in writing to extend the Territory to additional jurisdictions.
The Distributor shall not actively market NEXTREPORTING outside the Territory without the Provider's prior written consent.

Nothing shall prevent the Provider from supplying NEXTREPORTING directly to customers located outside the Territory.

The Provider also reserves the unrestricted right to market NEXTREPORTING directly under its own brand within Spain and any other territory not expressly granted to the Distributor.

4. WHITE LABEL LICENCE

The Provider grants the Distributor the right to commercialise NEXTREPORTING under the Distributor's branding.

The Distributor may replace the commercial name, logos, colour schemes, domain names and visual identity of NEXTREPORTING provided that such modifications do not affect the underlying software, security architecture, functionality or intellectual property.

The Distributor shall not remove copyright notices, proprietary legends or technical identifiers that are not intended to be visible to End Customers and are necessary for legal, operational or security purposes.

Any marketing materials developed by the Distributor shall accurately describe the functionality of NEXTREPORTING and shall not create contractual commitments exceeding those assumed by the Provider.

The Distributor shall ensure that all End Customers are informed that the underlying software technology is licensed under contractual arrangements established between the Parties.

5. OWNERSHIP OF THE SOFTWARE

The Distributor expressly acknowledges that all Intellectual Property Rights relating to NEXTREPORTING remain exclusively vested in the Provider.

Nothing contained in this Agreement transfers ownership of the software, source code, object code, databases, algorithms, dashboards, methodologies, APIs, documentation, technical architecture, know-how or any derivative developments. The Distributor acquires only the contractual rights expressly granted under this Agreement.

The Distributor shall not register, directly or indirectly, any trademark, domain name, company name or other distinctive sign liable to create confusion with NEXTREPORTING or any other Intellectual Property belonging to the Provider.

6. INTEGRATION WITH KONSOLIDATOR

The Parties acknowledge that NEXTREPORTING has been specifically designed to interoperate with KONSOLIDATOR through authorised application programming interfaces ("APIs").

The Distributor shall make available to the Provider the API connectivity, technical documentation and reasonable technical cooperation necessary to ensure interoperability between both platforms.

Each Party shall remain solely responsible for the operation, maintenance, security and performance of its own software environment.

Neither Party guarantees uninterrupted interoperability where changes are introduced by the other Party without prior coordination.

Each Party shall use commercially reasonable efforts to provide advance notice of material API changes likely to affect interoperability.

Where either Party intends to deprecate, replace or materially modify an API endpoint, authentication method or technical interface, it shall provide reasonable prior notice and cooperate in good faith to minimise disruption.

Neither Party shall intentionally introduce technical changes designed to impair interoperability.

7. END CUSTOMERS

The Distributor shall be solely responsible for negotiating, contracting with and invoicing End Customers.

The contractual relationship with each End Customer shall exist exclusively between the Distributor and the relevant End Customer.

The Provider shall not become party to any contract entered into between the Distributor and an End Customer solely by reason of providing the underlying software.

The Distributor shall ensure that each End Customer accepts the Provider's mandatory SaaS Terms and Conditions, Privacy Notice and any other policies identified by the Provider as mandatory.

Where the Provider updates mandatory legal documentation in order to comply with applicable legislation or to protect the integrity of the Service, the Distributor shall implement such updates within a reasonable period.

The Distributor shall not modify the Provider's mandatory legal terms in any manner that materially increases the Provider's legal exposure without the Provider's prior written approval.

8. CUSTOMER SUPPORT

Unless otherwise agreed, the Distributor shall provide first-line customer support directly to End Customers.

First-line support shall include user assistance, password resets, functional guidance, configuration support and the initial diagnosis of incidents.

The Provider shall provide second-line and third-line technical support to the Distributor in accordance with the applicable Service Level Agreement.

The Distributor shall ensure that only appropriately documented incidents are escalated to the Provider.

The Provider may refuse to investigate incidents where reasonable diagnostic information has not been supplied.

9. COMMERCIAL MODEL

The Distributor shall purchase subscriptions to NEXTREPORTING from the Provider in accordance with the commercial conditions agreed between the Parties.

Unless otherwise agreed, the Distributor shall determine independently the resale prices charged to End Customers.

Nothing contained in this Agreement establishes minimum resale prices or restricts the Distributor's commercial independence except where required to protect the Provider's Intellectual Property Rights or regulatory compliance.

The Provider may modify wholesale pricing upon renewal by giving not less than ninety (90) days' prior written notice.

10. MARKETING AND BRANDING

The Distributor shall market and promote the White Label Solution in a professional manner consistent with the reputation, quality standards and market positioning of the Service.

Except as expressly authorised under this Agreement, the Distributor shall not represent itself as the developer, owner or creator of the underlying software platform.

The Distributor may market the Service exclusively under its own trademarks, corporate identity and commercial documentation, provided that such branding does not create a misleading impression regarding ownership of the Intellectual Property Rights underlying the Service or the respective responsibilities of the Parties.

The Provider grants the Distributor a limited, revocable, non-exclusive and non-transferable licence to use those trademarks, logos, product descriptions, screenshots, technical documentation and marketing materials expressly approved by the Provider for the purposes of this Agreement.

Neither Party shall issue press releases, public announcements, customer references or case studies referring to the other Party without prior written approval, except where disclosure is required by applicable law or stock exchange regulations.

The Distributor shall ensure that all promotional material accurately reflects the capabilities of the Service and shall not make representations, warranties or commitments on behalf of the Provider that are inconsistent with this Agreement or the Provider's published documentation.

11. PRODUCT DEVELOPMENT AND ROADMAP

The Provider shall retain exclusive control over the development, maintenance, architecture, functionality, release schedule and technological evolution of NEXTREPORTING.

Nothing contained in this Agreement shall oblige the Provider to develop specific functionalities requested by the Distributor unless expressly agreed in writing.
The Distributor may submit suggestions, enhancement requests or product improvement proposals.

The Provider shall remain free to determine whether and when such proposals are incorporated into the Service.

Unless otherwise expressly agreed, all product enhancements, improvements, derivative developments and new functionalities implemented by the Provider shall become part of NEXTREPORTING and shall remain the exclusive property of the Provider.

Suggestions, comments and product feedback provided by the Distributor shall not give rise to any ownership rights or financial compensation unless otherwise expressly agreed.

12. SERVICE CHANGES

The Provider may modify, enhance, replace or discontinue individual functionalities of the Service where reasonably necessary for technical, operational, security or regulatory reasons.

The Provider shall use commercially reasonable efforts to avoid changes materially reducing the core functionality available to End Customers.

Where material functional changes are expected to affect the Distributor's commercial activities, the Provider shall provide reasonable prior notice together with appropriate implementation guidance.

The Parties acknowledge that continuous technological evolution constitutes an essential characteristic of cloud-based software services.

13. DATA PROTECTION

The Parties undertake to maintain strict confidentiality with respect to any personal data to which they may have access or of which they may become aware in connection with the execution and performance of this Agreement, whether relating to themselves or to third parties, and to comply at all times with the applicable legislation governing the protection of personal data. Each Party shall independently comply with all applicable Data Protection Laws. Each Party shall independently comply with all applicable Data Protection Laws.

As between the Parties, the Distributor shall normally act as Controller in relation to Personal Data relating to prospective customers, existing customers, commercial contacts, contractual administration and its own business operations.

Where the Provider Processes Personal Data on behalf of the Distributor through NEXTREPORTING, such Processing shall be governed exclusively by the applicable Data Processing Agreement (DPA).

Each Party shall implement appropriate technical and organisational measures designed to protect Personal Data against accidental or unlawful destruction, loss, alteration, unauthorised disclosure or unauthorised access.

Neither Party shall knowingly require the other Party to Process Personal Data in a manner that infringes applicable Data Protection Law.

Where a Personal Data Breach affecting the White Label Solution requires cooperation between the Parties, each Party shall provide the other with reasonable assistance consistent with its respective legal obligations.

The Parties mutually acknowledge and agree that the personal data contained in this Agreement shall be processed for the purposes of managing their contractual relationship, formalising and administering the commitments arising therefrom, and complying with the respective legal obligations, contractual obligations and legitimate interests applicable to each Party, on the corresponding legal bases under applicable data protection legislation.

Such personal data shall be processed for the duration of the contractual relationship and, following its termination, for such period as may be required to comply with applicable legal or contractual retention obligations.

The personal data may be incorporated into the respective records maintained by each Party for the purposes of managing such relationship. The data subjects may, at any time, exercise the rights recognised under applicable data protection legislation, including the rights of access, rectification, erasure, data portability, restriction of processing and objection, by submitting a written request to the Party acting as controller of the relevant personal data at the address specified in this Agreement or at any other address subsequently notified for such purpose. They

may also contact the relevant privacy officer or data protection contact of the respective Party using the same contact details.

Nothing in this clause shall prejudice the right of any data subject to lodge a complaint with the competent supervisory authority or to seek any other remedy available under applicable data protection legislation.

14. INFORMATION SECURITY

Each Party acknowledges that the security of the White Label Solution depends upon the coordinated operation of both NEXTREPORTING and KONSOLIDATOR.

The Provider shall remain responsible for the security of the NEXTREPORTING platform and the infrastructure under its operational control.

The Distributor shall remain responsible for the security of KONSOLIDATOR, its APIs, customer administration systems, authentication mechanisms and any infrastructure under its control.

Each Party shall promptly notify the other of any confirmed cybersecurity incident that could reasonably affect the interoperability, confidentiality, integrity or availability of the White Label Solution.

The Parties shall cooperate in good faith to investigate, contain and mitigate any security incident affecting the integrated operation of the platforms.
Neither Party shall disclose details of a joint security incident to customers or public authorities without prior coordination, except where immediate disclosure is required by applicable law.

15. AUDIT AND COMPLIANCE

Each Party shall maintain records reasonably necessary to demonstrate compliance with its obligations under this Agreement.

Where reasonably necessary to verify compliance with contractual obligations materially affecting the other Party, either Party may request relevant information or supporting documentation.

Audits shall be limited to matters directly related to the performance of this Agreement and shall be conducted in a manner that does not unnecessarily interfere with the audited Party's business operations or compromise the confidentiality of third-party information.

Neither Party shall be obliged to disclose source code, commercially sensitive information unrelated to this Agreement or information compromising the security of other customers.

Independent audit reports, recognised certifications or equivalent compliance documentation may be provided in place of on-site inspections where appropriate.

16. WARRANTIES

Each Party represents and warrants that it possesses full corporate authority to enter into this Agreement and perform its obligations.

The Provider warrants that it possesses the necessary Intellectual Property Rights to license and distribute NEXTREPORTING in accordance with this Agreement.

The Distributor warrants that it possesses all rights necessary to commercialise the White Label Solution within the Territory and to enter into contracts with End Customers.

Except as expressly provided herein, the Service is supplied on an "as available" and "as continually evolving" basis.

Neither Party warrants that the integrated operation of NEXTREPORTING and KONSOLIDATOR will always be uninterrupted or entirely free from defects.

17. INDEMNITIES

The Provider shall indemnify the Distributor against any final judgment or settlement arising from third-party claims alleging that the authorised use of NEXTREPORTING infringes Intellectual Property Rights belonging to such third party, subject to the conditions and limitations established in this Agreement.

The Distributor shall indemnify the Provider against claims arising from:

a) modifications introduced by the Distributor without the Provider's approval;
b) unauthorised representations made to End Customers;
c) contractual commitments exceeding those authorised by the Provider;
d) misuse of the Service;
e) infringement of third-party rights resulting from materials supplied by the Distributor.

Each indemnified Party shall promptly notify the indemnifying Party of any relevant claim and shall permit the indemnifying Party to assume control of the defence, provided that no settlement adversely affecting the indemnified Party may be

concluded without its prior written consent, such consent not to be unreasonably withheld.

18. LIMITATION OF LIABILITY

Neither Party shall be liable to the other for indirect, incidental, consequential or punitive damages, including loss of profits, anticipated savings, business opportunities, goodwill, customers or revenue.

The Provider shall not be liable for claims arising from the Distributor's contractual commitments towards End Customers that exceed the obligations assumed by the Provider under this Agreement.

Likewise, the Provider shall not be liable for interruptions, inaccuracies or failures attributable to KONSOLIDATOR, third-party APIs or infrastructure outside the Provider's reasonable control.

Except in cases of fraud, wilful misconduct or liability that cannot lawfully be excluded, the aggregate liability of either Party arising under this Agreement shall not exceed the total amounts paid or payable by the Distributor to the Provider during the twelve (12) months immediately preceding the event giving rise to the relevant claim.

The limitations contained in this Clause reflect the commercial allocation of risks agreed by the Parties and constitute an essential basis upon which this Agreement has been concluded.

19. INSURANCE

Each Party shall maintain, throughout the term of this Agreement, insurance coverage appropriate to the nature and scale of its business activities, including, where commercially appropriate, professional indemnity insurance, cyber liability insurance and public liability insurance.

Upon reasonable request, either Party shall provide evidence that such insurance remains in force.

The maintenance of insurance shall not limit either Party's contractual liabilities under this Agreement.

20. TERM

This Agreement shall enter into force on the Effective Date and shall remain in effect for an initial term of three (3) years unless otherwise specified in the applicable Commercial Schedule.

Upon expiry of the Initial Term, this Agreement shall automatically renew for successive periods of one (1) year unless either Party gives written notice of its intention not to renew at least one hundred and eighty (180) days prior to the expiry of the then-current term.

The Parties acknowledge that the commercial relationship established under this Agreement requires continuity in order to protect End Customers and preserve the stability of the White Label Solution. Consequently, neither Party shall unreasonably exercise any contractual right in a manner likely to jeopardise the continuity of services to existing End Customers.

21. TERMINATION

Either Party may terminate this Agreement with immediate effect by written notice if the other Party: a) materially breaches this Agreement and fails to remedy such breach within thirty (30) days after receiving written notice; b) becomes insolvent, enters into liquidation, administration or any equivalent insolvency proceeding; c) ceases to carry on business in the ordinary course; d) commits fraud, wilful misconduct or any criminal offence materially affecting the commercial relationship between the Parties; e) repeatedly commits material breaches demonstrating an unwillingness or inability to comply with this Agreement.

The Provider may additionally terminate this Agreement where the Distributor intentionally damages the reputation of the Service, misrepresents its functionality, infringes the Provider's Intellectual Property Rights or repeatedly fails to comply with mandatory legal documentation applicable to End Customers.

The Distributor may terminate this Agreement where the Provider permanently discontinues the NEXTREPORTING platform or materially withdraws essential functionality without providing a commercially reasonable alternative.

Termination shall always be exercised in good faith and in accordance with the principle of proportionality.

22. EFFECT OF TERMINATION

Termination of this Agreement shall not automatically terminate active subscriptions held by End Customers.

The Parties shall cooperate in good faith to ensure an orderly transition designed to minimise disruption to End Customers.

Unless otherwise agreed, the Distributor shall remain entitled to continue servicing existing subscriptions until the expiry of their respective contractual terms.

No new subscriptions may be sold following the effective date of termination unless expressly authorised in writing by the Provider.

The Provider shall continue providing the technical platform during the agreed transition period provided that the Distributor continues to comply with its payment obligations.

Nothing contained herein shall require either Party to continue the commercial relationship indefinitely beyond the agreed transition arrangements.

23. TRANSITION ASSISTANCE

Recognising the importance of business continuity, the Parties undertake to cooperate in good faith following termination of this Agreement.

During the Transition Period, the Provider shall provide reasonable technical cooperation to facilitate an orderly migration of active End Customers.

Such assistance may include reasonable technical documentation, migration support, API cooperation, export of Customer Data, technical consultations and other transition activities reasonably necessary to preserve service continuity.

Unless termination results from the Provider's material breach, Transition Assistance shall constitute Professional Services subject to the Provider's then-current professional service rates.

Neither Party shall intentionally obstruct or delay the orderly transition of End Customers.

24. CUSTOMER DATA AFTER TERMINATION

Each Party shall remain responsible for the Personal Data under its respective control.

The Provider shall continue Processing Personal Data solely to the extent necessary to complete the agreed transition activities, comply with applicable legal obligations or fulfil its obligations under the applicable Data Processing Agreement. Upon completion of the Transition Period, Personal Data shall be returned, exported, deleted or anonymised in accordance with the applicable contractual documentation.

Nothing contained in this Agreement shall require either Party to retain Personal Data beyond the periods required under applicable law.

25. CONTINUITY OF END CUSTOMER SERVICES

The Parties acknowledge that uninterrupted access to financial reporting services is essential for End Customers.

Accordingly, throughout any Transition Period, the Parties shall cooperate to minimise operational disruption.

Neither Party shall directly solicit the other Party's existing End Customers during the agreed Transition Period except where expressly authorised under this Agreement or where the relevant End Customer independently initiates such discussions.

The Parties shall coordinate communications relating to the termination of this Agreement in order to avoid unnecessary uncertainty for End Customers.

No public announcement concerning termination shall be issued without prior consultation unless disclosure is required by law.

26. NON-COMPETITION AND NON-CIRCUMVENTION

Nothing contained in this Agreement shall prevent either Party from developing, acquiring, licensing or commercialising software products competing with those of the other Party.

However, throughout the term of this Agreement, neither Party shall knowingly use Confidential Information obtained under this Agreement for the purpose of developing a competing product designed substantially to replicate the specific technical solutions or proprietary methodologies of the other Party.

The Distributor shall not circumvent the Provider by attempting to acquire ownership of the Provider's Intellectual Property Rights.

Likewise, the Provider shall not intentionally interfere with contractual relationships existing between the Distributor and active End Customers within the Territory during the agreed Transition Period.

This Clause shall not restrict lawful competition conducted independently and without misuse of Confidential Information.

27. FORCE MAJEURE

Neither Party shall be liable for any delay or failure to perform its obligations resulting from events beyond its reasonable control, including natural disasters, war, civil unrest, labour disputes, governmental actions, widespread failures of communications networks, failures affecting cloud infrastructure providers, cyberattacks of exceptional scale or other events constituting Force Majeure.

The affected Party shall notify the other Party without undue delay and shall use commercially reasonable efforts to mitigate the effects of the relevant event.

Where a Force Majeure Event continues for more than ninety (90) consecutive days and materially prevents performance of this Agreement, either Party may terminate the Agreement upon written notice.

28. ASSIGNMENT

Neither Party may assign or transfer this Agreement without the prior written consent of the other Party, such consent not to be unreasonably withheld or delayed.

Notwithstanding the foregoing, either Party may assign this Agreement without consent; a) to an Affiliate; b) to a successor resulting from merger, acquisition or corporate reorganisation; or c) to a purchaser of substantially all of the business or assets relating to the subject matter of this Agreement.

The assigning Party shall remain liable for obligations accrued prior to the effective date of the assignment unless otherwise agreed.

29. NOTICES

Any notice required under this Agreement shall be made in writing and delivered by recognised courier service or electronic mail to the contact details designated by each Party.

Operational communications concerning technical matters shall not constitute formal contractual notices unless expressly identified as such.

Notices shall be deemed received on the first Business Day following successful transmission by electronic mail or upon confirmed delivery where sent by courier.

30. ENTIRE AGREEMENT

This Agreement, together with its Schedules and Annexes, constitutes the complete agreement between the Parties concerning the distribution of NEXTREPORTING.

It supersedes all prior discussions, negotiations, proposals and understandings relating to its subject matter.

No amendment shall be effective unless made in writing and signed by duly authorised representatives of both Parties.

If any provision is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

No failure or delay by either Party in exercising any right shall constitute a waiver of that right.

31. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement and any dispute, claim or non-contractual obligation arising out of or in connection with it shall be governed by and construed in accordance with the laws of Spain, excluding its conflict of laws rules.

Recognising the strategic nature of their commercial relationship, the Parties undertake to use their best efforts to resolve amicably any disagreement arising out of or in connection with this Agreement before commencing judicial proceedings.

Any dispute shall first be referred to senior executives of each Party having authority to negotiate and settle the matter.

If the Parties are unable to reach an amicable settlement within thirty (30) days following written notification of the dispute, or within such longer period as they may mutually agree, either Party may submit the dispute to the exclusive jurisdiction of the Courts of Valencia (Spain).

Each Party irrevocably submits to the exclusive jurisdiction of the Courts of Valencia (Spain) and expressly waives any objection based on venue or any claim that proceedings have been brought before an inconvenient forum.

SCHEDULE 1
COMMERCIAL SCHEDULE

forming part of the White Label Software Distribution Agreement

1. **PURPOSE**
2.

This Commercial Schedule forms an integral part of the White Label Software Distribution Agreement (the "**Agreement**").

Its purpose is to define the commercial terms applicable to the distribution of NEXTREPORTING by the Distributor.

Except as expressly provided herein, capitalised terms shall have the meanings assigned to them in the Agreement.

Where any provision of this Commercial Schedule conflicts with the Agreement, this Commercial Schedule shall prevail solely in relation to the commercial matters expressly addressed herein.

2. COMMERCIAL DETAILS

Effective Date
[...]
Initial Term
Three (3) years.
Automatic Renewal
Successive one (1) year periods unless either Party provides notice of non-renewal in accordance with the Agreement.
Territory
Denmark
Authorised Brand
[Commercial name under which NEXTREPORTING will be offered.]
Underlying Software
NEXTREPORTING.
Primary Integrated Platform
KONSOLIDATOR.

3. PRODUCTS

The following products are included within the scope of this Schedule:

Product	Distribution Rights	White Label	Professional Services
NEXTREPORTING Core	Included	Yes	Optional
Additional Modules	Subject to future agreement	Yes	Optional
Future Functionalities	By mutual written agreement	Yes	Optional

The incorporation of new modules, functionalities or product families may be documented through an updated version of this Commercial Schedule without requiring amendment of the Agreement.

4. COMMERCIAL MODEL

The Provider grants subscriptions to the Distributor on a wholesale basis.

The Distributor shall acquire subscriptions directly from the Provider and shall be solely responsible for determining the commercial conditions applicable to End Customers.

Nothing contained in this Agreement establishes an agency relationship, commission structure or fiduciary obligation between the Parties.

The Distributor bears the commercial risk associated with the resale of subscriptions.

The Provider shall have no contractual relationship with End Customers except where expressly agreed in writing.

5. LICENSING MODEL

Unless otherwise agreed, subscriptions shall be granted on an annual basis.
Each subscription shall entitle the relevant End Customer to access the Service in accordance with the applicable SaaS Terms.

The Distributor shall not subdivide subscriptions, create unauthorised hosting environments or otherwise modify the licensing model established by the Provider.

6. ORDERING PROCEDURE

Orders shall be submitted using the ordering procedure agreed between the Parties.

Each order shall identify at least customer reference, subscription type, number of authorised users, subscription period, applicable modules and Professional Services, where applicable.

An order becomes binding only upon written acceptance by the Provider.

The Provider may reject orders where technically impossible, commercially unreasonable or contrary to applicable law.

7. FEES

The Distributor shall pay the wholesale fees set out in **Appendix A (Price List)**.

Unless otherwise agreed, wholesale prices are confidential and shall not be disclosed to third parties.

The Parties acknowledge that wholesale pricing reflects the allocation of commercial responsibilities established under the Agreement.

8. PRICE REVIEW

The Provider may revise wholesale pricing upon renewal of the Agreement or any Subscription Term by giving not less than ninety (90) days' prior written notice.

Price revisions may take into account: a) inflation; b) material increases in cloud infrastructure costs; c) significant regulatory changes; d) new functionalities incorporated into the Service; e) material changes affecting operating costs.

The Provider shall not implement arbitrary or discriminatory pricing adjustments.

9. PAYMENT TERMS

Invoices shall be issued monthly unless otherwise agreed.

Payment shall be due within thirty (30) days from the invoice date.

Late payments shall accrue interest at the rate established under applicable law.

Repeated late payment may entitle the Provider to suspend further subscription activations.

10. TAXES

All prices are exclusive of VAT and any similar indirect taxes.

Each Party shall remain responsible for its own direct taxation.

Cross-border transactions shall be treated in accordance with applicable European Union VAT legislation and any relevant double taxation treaties.

Each Party shall cooperate in good faith to ensure the correct application of reverse charge mechanisms or other applicable tax rules.

11. REPORTING

The Distributor shall provide the Provider with periodic subscription reports identifying: a) active subscriptions; b) new subscriptions; c) renewals; d) terminated subscriptions; and, e) Professional Services sold.

Such reports shall be used exclusively for billing, licence management and strategic planning.

The Provider shall treat such reports as Confidential Information.

12. COMMERCIAL REVIEW MEETINGS

The Parties shall hold periodic commercial review meetings, normally on a quarterly basis, to review the performance of the commercial relationship.

Such meetings may include discussion of commercial performance, customer feedback, planned developments, market opportunities, training requirements, commercial strategy.

The meetings shall not create binding contractual obligations unless expressly recorded in writing and signed by authorised representatives of both Parties.

13. APPENDIX A – WHOLESALE PRICE LIST

The Parties shall maintain a separate confidential Wholesale Price List.

The Price List may be updated by mutual agreement without requiring amendment of the Agreement.

The applicable version shall always be identified by version number and effective date.

SCHEDULE 2
TECHNICAL INTEGRATION & SUPPORT SCHEDULE

forming part of the White Label Software Distribution Agreement

1. **PURPOSE**
2.

This Technical Integration & Support Schedule ("**Technical Schedule**") establishes the technical, operational and support framework governing the interoperability between the NEXTREPORTING platform and the KONSOLIDATOR platform.

Its purpose is to ensure that the integration between both platforms remains secure, stable, interoperable and operational throughout the duration of the Agreement.

This Technical Schedule complements the Agreement and the Service Level Agreement but does not replace either of them.

In the event of inconsistency, the Agreement shall prevail except in relation to technical matters expressly governed by this Technical Schedule.

2. TECHNICAL ARCHITECTURE

The Parties acknowledge that the White Label Solution consists of two independent Software-as-a-Service platforms operating through secure interoperability.

NEXTREPORTING remains exclusively hosted, operated, maintained and secured by the Provider.

KONSOLIDATOR remains exclusively hosted, operated, maintained and secured by the Distributor.

The integration between both platforms shall take place exclusively through documented Application Programming Interfaces ("APIs") or other mutually approved technical interfaces.

Neither Party shall obtain access to the internal software architecture, source code, databases or infrastructure of the other Party except to the extent strictly necessary for the agreed interoperability.

The Parties acknowledge that each platform shall remain operationally independent notwithstanding their functional integration.

3. TECHNICAL RESPONSIBILITIES

The Provider shall remain solely responsible for: a) the development, maintenance and operation of NEXTREPORTING; b) the security of the NEXTREPORTING infrastructure; c) the availability of the NEXTREPORTING APIs; d) the integrity of data processed within NEXTREPORTING following successful receipt through the agreed

interfaces; e) software updates relating to NEXTREPORTING; and, f) technical support relating exclusively to NEXTREPORTING.

The Distributor shall remain solely responsible for: a) the development, maintenance and operation of KONSOLIDATOR; b) the availability of KONSOLIDATOR APIs; c) customer authentication performed through KONSOLIDATOR where applicable; d) the integrity of information originating from KONSOLIDATOR; e) the administration of End Customer accounts; f) first-line customer support.

Neither Party assumes operational responsibility for the infrastructure controlled by the other Party.

4. API INTEROPERABILITY

The interoperability between NEXTREPORTING and KONSOLIDATOR shall be based upon mutually agreed API specifications.

Each Party shall ensure that its APIs are documented with sufficient detail to enable the agreed integration.

Documentation shall include authentication methods, supported endpoints, request and response formats, mandatory parameters, error handling and version information.

Neither Party shall intentionally introduce technical measures designed to impair interoperability.

Where integration depends upon third-party services, each Party shall use commercially reasonable efforts to minimise the operational impact of changes introduced by such third parties.

5. API VERSION MANAGEMENT

The Parties acknowledge that APIs evolve over time.

Each Party may introduce new API versions, provided that reasonable backward compatibility is maintained wherever technically feasible.

Where an API version is scheduled for deprecation, the relevant Party shall provide reasonable prior notice before discontinuing support.

Such notice shall include the affected API version, the expected deprecation timeline, migration guidance and technical documentation for the replacement version.

During the migration period, the Parties shall cooperate in good faith to minimise operational disruption.

Unless immediate action is required for security reasons, deprecated API versions shall remain operational for a commercially reasonable transition period.

6. CHANGE MANAGEMENT

Either Party intending to introduce technical changes reasonably expected to affect interoperability shall notify the other Party before implementation.

Material technical changes include, without limitation, changes affecting authentication mechanisms, modification of mandatory API parameters, changes to response structures, deprecation of existing endpoints, modification of security protocols, changes affecting data models or modification of rate limits likely to affect normal operation.

The Parties shall cooperate to validate compatibility before deployment into production.

Where reasonably practicable, testing shall be carried out using dedicated test environments.

7. DEVELOPMENT ENVIRONMENTS

Each Party shall maintain appropriate development and testing environments where reasonably necessary to validate interoperability.

Testing environments need not replicate the production environment in every respect but shall provide sufficient functionality to enable compatibility testing.
Neither Party shall use production environments to perform intrusive testing without prior agreement.

Test environments may be modified without notice provided that such modifications do not materially affect agreed integration testing.

8. AUTHENTICATION

The Parties shall implement secure authentication mechanisms appropriate to the sensitivity of the information exchanged.

Authentication methods may include OAuth 2.0, OpenID Connect, mutual TLS, signed tokens, API keys or other recognised industry standards agreed between the Parties.

Authentication credentials shall be protected against unauthorised disclosure.
Each Party shall promptly revoke credentials that are no longer required or that are suspected to have been compromised.

9. SECURITY OF DATA EXCHANGE

All communications between the platforms shall use appropriately secured communication channels.

The Parties shall implement measures designed to preserve the confidentiality, integrity and authenticity of data exchanged through the integration.

Where technically appropriate, information shall be encrypted during transmission using recognised industry standards.

Neither Party shall intentionally disable security controls implemented to protect the interoperability between the platforms.

10. MONITORING

Each Party shall maintain operational monitoring appropriate to detect failures affecting interoperability.

Monitoring may include API availability, authentication failures, abnormal response times, repeated transmission failures and security-related events.

Monitoring data shall be used exclusively for operational, security and service improvement purposes.

11. INCIDENT MANAGEMENT

Technical incidents affecting interoperability shall be classified according to their operational impact.

The Party first identifying the incident shall notify the other Party without undue delay.

Each Party shall designate technical contacts responsible for operational communications.

The Parties shall cooperate in good faith throughout the investigation, diagnosis, mitigation and resolution of interoperability incidents.

Neither Party shall publicly attribute responsibility for a technical incident until the relevant facts have been jointly assessed, except where disclosure is required by law.

12. ESCALATION PROCEDURE

Operational issues that cannot reasonably be resolved by ordinary support personnel shall be escalated through designated technical contacts.

Critical incidents significantly affecting production services shall receive priority treatment by both Parties.

Where necessary, either Party may request the establishment of a joint incident response team comprising appropriate technical personnel from both organisations.

Each Party shall ensure that appropriately qualified personnel remain available throughout the management of critical incidents.

13. SOFTWARE RELEASES

Each Party shall independently determine its own software release schedule.
Where a planned release is reasonably expected to affect interoperability, reasonable advance notice shall be provided.

Where practicable, significant releases shall first be validated within testing environments before deployment into production.

Emergency security releases may be deployed immediately where necessary to protect the integrity or security of either platform.

14. BUSINESS CONTINUITY

Each Party shall maintain business continuity arrangements appropriate to the services under its control.

Where a significant operational disruption affects interoperability, the Parties shall cooperate in implementing appropriate recovery measures.

Neither Party guarantees uninterrupted interoperability during disaster recovery events, although both Parties shall use commercially reasonable efforts to restore integrated services as soon as reasonably practicable.

15. TECHNICAL GOVERNANCE

The Parties shall designate technical representatives responsible for overseeing the operational relationship established under this Technical Schedule.

Technical representatives may periodically review interoperability performance, planned developments, compatibility issues, significant incidents and opportunities for technical improvement.

Technical discussions shall not modify contractual obligations unless expressly documented and approved by authorised representatives of both Parties.

16. DOCUMENTATION

Each Party shall maintain technical documentation reasonably necessary to support the agreed integration.

Documentation shall be updated following material technical changes affecting interoperability.

Reasonable access to such documentation shall be provided to authorised technical personnel of the other Party.

Confidential technical documentation shall remain subject to the confidentiality provisions of the Agreement.

17. SURVIVAL

Those provisions of this Technical Schedule relating to confidentiality, Intellectual Property Rights, information security, incident cooperation and transition assistance shall survive termination of the Agreement for so long as reasonably necessary to complete the orderly discontinuation of the integration.

SCHEDULE 3
WHITE LABEL BRANDING GUIDELINES

F
forming part of the White Label Software Distribution Agreement

1. PURPOSE

This White Label Branding Guidelines Schedule ("**Brand Guidelines**") establishes the conditions governing the branding, presentation and commercial identity of the White Label Solution distributed under the Agreement.

Its purpose is to preserve the commercial consistency, reputation and intellectual property associated with the NEXTREPORTING platform while allowing the Distributor to market the Service under its own brand.

These Brand Guidelines complement the Agreement and shall prevail only with respect to branding and visual identity matters.

2. WHITE LABEL PRINCIPLE

The Parties acknowledge that the White Label Solution shall be marketed under the Distributor's own commercial identity.

Accordingly, the Distributor may present the Service to End Customers using its own trademarks, logos, domain names, graphical identity and marketing materials. Nothing contained in these Brand Guidelines shall be interpreted as transferring ownership of the software, source code, documentation or any Intellectual Property Rights relating to NEXTREPORTING.

The White Label Solution remains the proprietary software of the Provider irrespective of the branding adopted by the Distributor.

3. AUTHORISED BRANDING

Subject to compliance with these Brand Guidelines, the Distributor may: a) use its own product name for the White Label Solution; b) apply its own corporate identity and visual style; c) adapt colours, typography, icons and graphical resources; d) incorporate the Service into the general visual identity of KONSOLIDATOR; e) modify menus, labels and user interface terminology where such modifications do not affect the functionality, security or legal compliance of the Service.

Any modifications shall preserve the operational integrity of the software.

4. PROHIBITED MODIFICATIONS

The Distributor shall not: a) modify or remove copyright notices embedded within the software where such notices are not intended to be visible to End Customers; b) alter software code affecting security, authentication or licensing mechanisms; c) reverse engineer or create derivative software based upon NEXTREPORTING; d) remove technical identifiers necessary for maintenance, security or regulatory compliance; e) represent that the Distributor has developed the underlying software technology.

The Distributor shall not use branding likely to create confusion concerning the ownership of the underlying software.

5. TRADEMARKS

Each Party retains exclusive ownership of its respective trademarks, trade names, logos, domain names and other distinctive signs.

Nothing contained in the Agreement grants ownership of any trademark belonging to the other Party.

Where one Party is authorised to use the trademarks of the other Party, such authorisation shall be limited to the purposes expressly contemplated by the Agreement.

All goodwill arising from the use of a Party's trademarks shall accrue exclusively to that Party.

6. COPYRIGHT NOTICES

Unless otherwise agreed, End Customers shall not be required to see any reference to the Provider within the ordinary user interface.

However, copyright notices, proprietary legends and software identification mechanisms contained within the software architecture or administrative environments may remain in place where required for operational, security or legal purposes.

The Distributor shall not remove such notices where removal could prejudice the Provider's Intellectual Property Rights.

7. DOMAINS AND HOSTING

The Distributor may market the White Label Solution through its own domain names, websites and customer portals.

Nothing contained herein transfers ownership of any internet domain.

Each Party shall remain responsible for maintaining and protecting its own domain portfolio.

The Distributor shall not register domain names confusingly similar to "NEXTREPORTING" or any trademark owned by the Provider unless expressly authorised in writing.

8. MARKETING MATERIALS

The Distributor shall prepare its own sales documentation, presentations, demonstrations and promotional materials.

Such materials shall accurately describe the functionality of the Service and shall not contain misleading statements, exaggerated performance claims or warranties inconsistent with the Agreement.

Where technical specifications supplied by the Provider are reproduced, they shall not be materially altered in a manner capable of misleading End Customers.

9. CUSTOMER COMMUNICATIONS

The Distributor shall remain solely responsible for all commercial communications addressed to End Customers.

Where communications concern significant technical incidents, cybersecurity events, service interruptions or regulatory matters affecting the White Label Solution, the Parties shall cooperate to ensure that communications remain accurate, consistent and technically correct.

Neither Party shall publicly attribute responsibility for any incident before completing an appropriate joint technical assessment except where immediate disclosure is required by applicable law.

10. REFERENCES

Neither Party shall use the name, logo or trademarks of the other Party in customer references, press releases, case studies, interviews or marketing campaigns without prior written approval.

Approval may be granted generally or for specific communications.

The Parties acknowledge that references to the commercial relationship may require prior approval by both Parties.

11. QUALITY STANDARDS

The Distributor shall market the White Label Solution in a manner consistent with good commercial practice and with the reputation of enterprise financial software. The Distributor shall refrain from marketing practices capable of damaging the reputation of the Service or the Provider.

The Provider may reasonably request correction of marketing materials that materially misrepresent the functionality, security, compliance or intended use of the Service.

12. INTELLECTUAL PROPERTY PROTECTION

The Distributor shall promptly notify the Provider upon becoming aware of any suspected infringement, unauthorised use, counterfeiting, piracy or misuse affecting the Intellectual Property Rights associated with NEXTREPORTING.

The Provider shall determine the appropriate legal strategy in relation to any infringement affecting its Intellectual Property Rights.

The Distributor shall provide reasonable cooperation where such cooperation is necessary for the protection or enforcement of those rights.

13. EFFECT OF TERMINATION

Upon termination of the Agreement, the Distributor shall discontinue the use of any trademarks, logos or other branding elements belonging to the Provider except where continued use is expressly authorised for the purpose of completing the agreed Transition Period.

Marketing materials incorporating the Provider's branding shall be withdrawn within a reasonable period following termination.

Nothing contained herein shall affect the continued servicing of existing End Customers during any agreed Transition Period.

14. AMENDMENTS

These Brand Guidelines may be updated by written agreement between the Parties.

Minor operational adjustments that do not materially affect the Parties' legal rights may be agreed between the Parties' designated commercial representatives and recorded in writing.